

HIPAA Notice of Privacy

This Notice describes how your medical information, in accordance with HIPAA - The Health Insurance Portability and Accountability Act of 1996, may be used and disclosed and how you can get access to this information.

Mastercare collects relevant information about you to enable us to safely provide your service in a way that meets your individual needs and preferences. However, we are legally obligated to:

- Maintain the privacy of protected health information
- Give you this notice of our legal duties and privacy practices regarding health information about you
- Follow the terms of our notice that is currently in effect

How We May Use and Disclose Your Health Information:

Plan of Care/Treatment. We may use your information to provide, coordinate, and manage your care and treatment. For example, Mastercare nurses may share your medical information with your doctor to plan out the correct course of treatment for you.

Payment. We may use your information to receive payment for the services we provide. For example, we will disclose information to submit bills or claims to insurance companies and/or Medicaid. Mastercare may also need to obtain prior approval from your insurer and may need to explain your need for home care and the services that will be provided to you.

Agency Operations. We will use your information for certain activities related to the functioning of Mastercare. For example, we may use or disclose information to continually improve the quality and effectiveness of services provided. Regulatory and accrediting organizations may also review your records to ensure compliance with their requirements.

Special Situations:

Notifications. In emergency situations, where Mastercare needs to notify or assist in notifying a family member, legal representative, or another person responsible for your care, of your location and general condition.

Workers' Compensation. Mastercare may disclose health information to the extent authorized by and to the extent necessary to comply with laws relating to workers' compensation or other similar programs established by law.

Public Health. As required by Federal and State law, Mastercare may disclose your health information to public health or legal authorities charged with preventing or controlling disease, injury, or disability.

Law Enforcement. As required by Federal and State law, Mastercare will notify authorities of alleged abuse/neglect, risk or threat of harm to self or others. We may disclose health information for law enforcement purposes as required by law or in response to a valid subpoena.

Charges Against Mastercare. In the event you should file suit against Mastercare, we may disclose health information necessary to defend such action.

Duty to Warn. When a client communicates to Mastercare a serious threat of physical violence against himself/herself or a reasonably identifiable victim or victims, Mastercare will notify either the threatened person(s) and/or law enforcement.

In any other situation, Mastercare will not use or disclose your medical information in any other way unless you allow us to do so in writing. If you give us permission to disclose information, you have the right to change your mind and revoke the permission at any time.

Your Rights

You have the following rights regarding protected health information we have about you:

Right to Inspect and Copy. You may ask to inspect and copy your protected health information that may be used to make decisions about your care or payment for your care. This includes medical and billing records, other than psychotherapy notes. To inspect and copy this your health information, you must make your request, in writing, to Mastercare, Inc. We have up to 30 days to make your protected health information available to you and we may charge you a reasonable fee for the costs of copying, mailing or other supplies associated with your request.

Right to a Paper Copy of this Notice. You have the right to a paper copy of this notice. You may ask us to give you a copy of this notice at any time. You may obtain a paper copy of this notice in person or request it by mail.

Right to Get Notice of a Breach. You have the right to be notified upon a breach of any of your unsecured protected health information.

Right to Amend. If you feel that the health information, we have is incorrect or incomplete you may ask us to amend the information. You have the right to request an amendment for as long as the information is kept by or for our office.

Right to Request Restrictions. You have the right to request a restriction or limitation on the health information we use or disclose for treatment, payment, or agency operations. You may also request that Mastercare not provide your medical information to certain people. However, Mastercare has the right to refuse your request.

Right to Request Confidential Communications. You have the right to request that we communicate with you about medical matters in a certain way or at a certain location. For example, you can ask that we only contact you by mail or at work. To request confidential communications, you must make your request, in writing, to Mastercare, Inc. Your request must specify how or where you wish to be contacted. We will accommodate reasonable requests.

Changes to This Notice:

We reserve the right to change this notice and make the new notice apply to health information we already have as well as any information we receive in the future.

Send all written requests to:

Mastercare Dallas:
7920 Belt Line Road, Suite 720
Dallas, TX 75254
Fax: (469) 930-6430
Email: support@mastercare.care